

27 March 2019

Mr Richard McLean
rich@richmclean.com.au

Dear Mr McLean

Complainant	Mr Richard McLean
Trustee	Fss Trustee Corporation (Fss)
Super fund	Health Super (now known as First State Superannuation Scheme)
Case number	607999

I have enclosed our recommendation in relation to the above complaint.

We have made a recommendation

The recommendation outlines the details of your complaint, the issues we considered and the reasons for our recommendation.

You must respond to the recommendation

You and Fss must now decide whether or not to accept the recommendation.

You will need to tell me within **30 days** whether you accept or reject the Recommendation.

If you wish to reject the recommendation and request we issue a determination, you must write to me within **30 days** and:

1. Set out your reasons for rejecting the recommendation
2. Provide any new and relevant information.

What happens if you or Fss reject the recommendation?

If a letter is received from you or Fss rejecting the recommendation, I will provide a copy of the rejection and reasons to the other party so that they are aware of the basis of the rejection and have an opportunity to respond.

We will issue a determination

If you reject the recommendation, and there is no new information, then a determination will be issued based on the information already on file.

The Ombudsman will review all of the evidence on the file and make their own decision.

A determination of a Superannuation Complaint comes into effect immediately once it is made unless the Ombudsman states a later effective date in the determination. Each party to a Superannuation Complaint has a right of appeal to the Federal Court on a question of law. Any appeal must be made within 28 days after the determination is received.

If you do not respond we may close our file

Please provide a response to this recommendation by **26 April 2019**.

If Fss accepts the recommendation and you do not respond, your complaint will not be considered further, and your file will be closed.

If you have any questions about this letter or the process for rejecting a recommendation, please quote the case number when you:

- call: 03 9910 2134
- email: JMaclachlan@afca.org.au.

Yours sincerely



Jamie Maclachlan
Case Manager
Australian Financial Complaint Authority